

CUSTODY IS NOT THE TEST

TO	Oregon Department of Justice, Public Records Orders
FROM	Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467
DATE	September 25, 2026
RE	New petition under ORS 192.324(6) and ORS 192.411; Office of Governor Tina Kotek; the fee waiver denied September 22, 2026
TESTIMONY	v1.11
AI DISCLOSURE	How this record is made.

To the Attorney General:

I petition for a Public Records Order under ORS 192.324(6) and ORS 192.411. The public body is the Office of Governor Tina Kotek. The decision petitioned is the denial of my fee waiver on September 22, 2026.¹

This is a new petition, not a request to revisit the order of September 24 in DOJ File No. 121010-GA0187-26.² The statute provides no mechanism for reconsideration, so I am not asking for one.

WHAT THE ORDER HELD

The order states:

*Because your petition seeks records in the custody of the Governor, an elected official, we lack jurisdiction to consider your appeal and must respectfully dismiss your petition.*²

Custody is the entire stated ground. The order offers nothing else.

WHAT ORS 192.427 SAYS

In any case in which a person is denied the right to inspect or to receive a copy of a public record in the custody of an elected official, or in the custody of any other person but as to which an elected official claims the right to withhold disclosure, no petition to require disclosure may be filed with the Attorney General or district attorney, or if a petition is filed it shall not be considered by the Attorney General or district attorney after a claim of right to withhold disclosure by an elected official.

The order quotes the closing clause as “it shall not be considered by the Attorney General * * *.”² The words the ellipsis replaces are “or district attorney after a claim of right to withhold disclosure by an elected official.”

WHAT THE ATTORNEY GENERAL’S OWN MANUAL SAYS

The Attorney General’s Public Records and Meetings Manual, 2024 edition, page 37, under the heading “Elected Officials”:

*Neither the Attorney General nor district attorney may review an elected official’s decision to withhold a record from inspection under the Public Records Law. This rule applies regardless of whether the record in question is in the custody of the elected official or in the custody of any other public body, so long as the elected official claims the right to withhold the record.*⁶

Every word of that rule is about withholding. No record has been withheld from me. Nothing in this matter has been withheld from me by anyone, and no one has claimed the right to withhold anything. The records were priced and the payment instructions were sent.

There is no decision to withhold here for the Attorney General to be barred from reviewing.

The Department's own website states it in plainer words. Two paragraphs on the same page:⁷

If a state agency has denied your request for public records or your request for a fee waiver or reduction, you may ask the Attorney General to order the agency to provide the records or waive or reduce fees.

If an elected official denies your request for public records, you cannot appeal to the Attorney General or District Attorney.

In both publications the bar turns on an elected official denying a request for records. No one has denied me a record.

NO ELECTED OFFICIAL HAS CLAIMED ANYTHING HERE

Governor Kotek has made no statement in this matter of any kind.

The custodian who answered me is Cameron D. Miles, Government Accountability Attorney, copied on the order itself. The Governor's published public records procedure names him:⁸

The Governor's Government Accountability Attorney, Cameron Miles, is responsible for receiving and coordinating public records requests made to the Office of the Governor.

The same procedure describes its own first response as "a statement that the Office of the Governor does or does not have custody of the requested document(s)."⁸ The office states that custody is the office's.

Mr. Miles withheld no record. He priced the records at \$572.50 and denied my fee waiver.¹ I accepted the estimate in writing two minutes later,³ and his office sent the payment instructions on September 24.⁴

Nothing has been withheld. No one has claimed the right to withhold anything. There is no denial of inspection in this matter, and I have not asked the Attorney General to review one.

WHAT I PETITIONED

ORS 192.427 bars a "petition to require disclosure." I did not file one.

ORS 192.324(6) reads:

A requester who believes that there has been an unreasonable denial of a fee waiver or fee reduction may petition the Attorney General or the district attorney in the same manner as a requester who petitions when inspection of a public record is denied under ORS 192.311 to 192.478. The Attorney General, the district attorney and the court have the same authority in instances when a fee waiver or reduction is denied as when inspection of a public record is denied.

ORS 192.411(1) reads:

Subject to ORS 192.401 (1) and 192.427, any person denied the right to inspect or to receive a copy of any public record of a state agency may petition the Attorney General to review the public record to determine if it may be withheld from public inspection.

The words "Subject to ORS 192.401 (1) and 192.427" appear in ORS 192.411(1). They do not appear in ORS 192.324(6).

My petition of September 24 raised two grounds: the fee waiver, and the office's failure to send payment instructions for a fee it had assessed.⁵ The instructions arrived at 1:45 PM that day.⁴ The second ground is closed. The dismissal was issued at 4:32 PM and did not reach the first.²

My petition of September 24 was filed under ORS 192.324(6) as well as ORS 192.411.⁵ The order does not mention the fee waiver, the five-factor analysis of September 22, or ORS 192.324(6). It describes my petition as asking the Attorney General to order the office "to respond to a public records request."² That is not the petition I filed.

WHAT THE ORDER'S READING WOULD DO

If custody by an office headed by an elected official ends the Attorney General's authority, then the Office of the Governor sits outside the petition process on every record, in every case, permanently. So does the Secretary of State. So does the State Treasurer. So does every district attorney and every elected county officer in Oregon.

So does the Department of Justice. The Attorney General is elected. Under the reading the order applies, the records of the office that issued the order are unreachable by the process that office administers, and the same is true of every district attorney the statute names beside it. A rule of review cannot exempt the reviewers.

The statute does not read that way and the Attorney General has never published that it does. It conditions the bar on an act by a person: an elected official claiming the right to withhold a record. The act is what removes the matter from review, and the official who performs it does so on the record, where the public can see who withheld what.

An office-wide bar triggered by custody removes that entirely. No one has to claim anything, no one has to sign anything, and no one is answerable for the withholding, because on that reading no withholding was ever reviewable in the first place.

Elected officials answer to the public record more than other officials do, not less. They hold their offices by the consent of the people whose records these are, and that consent is exercised on what the public record shows. An office does not become less accountable to the public record because the public elected the person who leads it.

WHY THE WAIVER SHOULD BE GRANTED

Mr. Miles applied five factors and found that none weighed in favor of a waiver.¹ The record answers each one.

The first factor is the requester's identity. His letter states that the request "relates to a personal, rather than a public interest."¹

I run oprdvoltunteerabuse.org. Its mission is to create protections for the people who volunteer for this state. On August 24, 2025 I asked the Director of the Oregon Parks and Recreation Department for five protections for every volunteer, and asked for nothing for myself.¹⁴

Who is asking does not convert a record of state conduct into a private one.

The second factor is the purpose. His letter states that "the use of records for a personal issue does not weigh in favor of the request being in the public interest."¹

My purpose is publication. Every record any institution has produced to me is published in full at a permanent public address, 526 documents in all. Oregon State Police produced its file on September 3, 2026, and I published it that day, complete, as received.¹²

The third factor is the character of the information. His letter states that my form "does not explain how the release of records is in the public interest other than by stating a general interest in transparency."¹

My request explains it. It asks for the receipt, routing, logging, assignment, review, and disposition of the correspondence I have sent to the Office of the Governor since November 18, 2025.¹⁰

On March 3, 2026 an Oregon Parks and Recreation Department emergency manager notified an Oregon State Police captain about me, and gave as his stated reason that I was “now including the Governor as well as our Director.” A threat assessment was requested the following morning. On March 24, 2026 two OSP detectives and a federal officer came to my residence. On April 15, 2026 an OSP detective wrote that “there is no evidence White has committed any crimes.” Oregon State Police produced that chain on September 3, 2026.¹²

Whether writing to the Governor’s office precedes a citizen being referred to the state police is not a general interest in transparency.

The fourth factor is whether the records are already in the public domain. His letter states that the requester “has not demonstrated that this factor weighs in favor of granting a fee waiver.”¹

This factor asks whether the public already holds the records. It does not. Records the public does not have are the only records a disclosure can add anything to. As applied, the office’s own non-publication of these records is counted against the person asking the office to publish them.

The fifth factor is the ability to disseminate. His letter states that the requester “has not demonstrated the ability to disseminate the public records but merely stated that he can post it on a website.”¹

The Office of the Governor’s own correspondence was published in the archive before that sentence was written. My records request of September 5, 2026 was published the day I filed it.¹⁰ The office’s acknowledgment was published September 8, 2026, the day it was sent and copied to Mr. Miles.¹¹ On September 9, 2026 I wrote to Mr. Miles that every pending request of mine is tracked at a public address, and that page was published the same day.⁹ His sentence was written thirteen days after that notice.

The Attorney General’s order dismissing my first petition was sent at 4:32 PM on September 24, 2026.² By 5:28 PM the same day it was published at its permanent address and cited as a source in my request for reconsideration. The first footnote of that letter is a live link to the order.¹⁵ Fifty-six minutes from issuance to publication and use as material.

The archive is built in the open. Every page of it is a timestamped commit in a public repository at <https://github.com/rswfire/rswfire.oprd>.

The totality of the circumstances. His letter concludes that “when none of the prescribed factors weigh in favor of the grant of a fee waiver, the grant of a fee waiver is not warranted.”¹

The Attorney General’s manual states the standard:⁶

A public body’s fee-waiver decision should consider (1) the character of the public interest in the particular disclosure, (2) the extent to which the fee impedes that public interest, and (3) the extent to which a waiver would burden the public body.

The letter addresses none of the three. It does not describe the public interest in this particular disclosure, and it does not describe any burden a waiver would place on the office.

A REDUCTION WAS NEVER CONSIDERED

The Attorney General’s manual instructs public bodies on exactly this point:¹³

When assessing a request for a fee waiver of 100%, public bodies should also determine whether a more modest fee reduction is appropriate. There may be circumstances in which denying a total fee waiver is reasonable, but where refusing a 25% or 50% reduction is unreasonable.

Mr. Miles denied the waiver outright.¹ His letter does not consider a reduction, does not mention one, and gives no figure other than \$572.50.

The same page of the manual states what the Attorney General has determined in past petitions:¹³

*A 50% fee reduction was reasonable for a major news outlet with the resources to pay where the request sought records from over 200 files, rather than from a specific type of file tied to the public interest;
A 20% fee reduction for a media requester was reasonable where 56 hours of staff time was needed to fulfill a broad request not tailored to specific files;*

Each of those determinations rests on a stated quantity: a number of files, a number of staff hours. Mr. Miles stated no quantity of any kind. His letter gives one number, \$572.50, with no hours, no file count, no custodian search described, and no statement of what the work consists of.

THE POLICY THE OFFICE INVOKED HAS A TEST THE OFFICE DID NOT APPLY

Mr. Miles states that in reviewing a fee waiver his office follows DAS Policy 107-001-030, and quotes it at length.¹ Two of the provisions he quotes are these:

*To adequately balance the State's obligation to be transparent and accessible with the obligation to prudently safeguard public funds and resources, fee-waivers and -reductions should be granted when the statutory standard has been met - when disclosure will primarily benefit the general public.
A request to waive or reduce fees related to a public records request, that requires substantial agency resources to complete, may be denied if the interest of the general public would be better served by preserving agency resources.*

The second provision is the office's route to a denial on burden, and it requires the office to say something: that the request demands substantial resources, and that the public is better served by preserving them. Mr. Miles asserts neither. He quotes the policy and then decides the question on the five factors alone.

The first provision is the one that governs when the standard is met. It does not say a waiver may be granted. It says fee waivers and reductions **should** be granted.

RELIEF REQUESTED

1. Consider this petition. The bar in ORS 192.427 has not been triggered. No elected official has claimed the right to withhold any record, and no record has been withheld.
2. Find the denial of September 22 unreasonable under ORS 192.324(5) and order the fee waived.
3. If a full waiver is denied, determine whether a reduction is appropriate, as the Attorney General's manual instructs, and state the figure and its basis.
4. If the Attorney General's position is that custody by the Office of the Governor is itself the bar, state that in the order, and name the offices in Oregon that the people of this state may not petition.

I am not asking the Attorney General to make any finding about the underlying events. I am asking that the statute be applied as it is written and as the Attorney General has published it.

Respectfully,

Robert Samuel White

Sources

1. [The fee waiver is denied: \\$572.50, September 22, 2026.](#)
2. [The petition is dismissed for lack of jurisdiction, September 24, 2026.](#) DOJ File No. 121010-GA0187-26.
3. [I will pay it. Send the instructions., September 22, 2026.](#)
4. [The payment instructions arrive, September 24, 2026.](#)
5. [Petition for a Public Records Order, September 24, 2026.](#)
6. [Attorney General's Public Records and Meetings Manual, 2024, at 37.](#)
7. [Oregon Department of Justice, Public Records and Meetings Law.](#)
8. [Office of the Governor, Public Records Requests.](#)
9. [Notice: the requests are now tracked publicly, September 9, 2026.](#)
10. [Public records request to the Office of the Governor, September 5, 2026.](#)
11. [The Governor's office begins gathering records, September 8, 2026.](#)
12. [The records are produced, September 3, 2026.](#) The full PR27478 production, published the day it arrived.
13. [Attorney General's Public Records and Meetings Manual, 2024, at 20-21.](#)
14. [An Open Letter, August 24, 2025.](#) The five protections, requested for every volunteer.
15. [No record has been denied, September 24, 2026.](#) Sent 5:28 PM; footnote 1 links to the order.